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Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT N14
HON. JULIANNE SARTAIN BANCROFT

Date: Monday, September 28, 2026, 9:00 a.m.

- All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom’s Zoom hearing session. Check-in instructions and an instructional video are available on the court’s website. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the initial appearance. All hearings are open to the public. The courtroom doors are open.
- You must provide your own court reporter (unless you have a fee waiver and request one in advance).
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, then call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk. The court will hold a hearing. The court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative Ruling
101	Batra v. Regents, 2026-01564048	DEMURRER – CONTINUED
102	Capers v. ESP Holdings, 2026-01537790	DEMURRER – CONTINUED
103	Carpenter v. Frey, 2026-01544571	DEMURRER – SUSTAINED IN PART AND OVERRULED IN PART MOTION TO STRIKE - DENIED Plaintiffs sued Defendant for causes of action related to the alleged lack of habitability of the home they rented from her, especially with regard to mold. Defendant demurs to the third, fifth, seventh and eighth causes of action, and moves to strike the punitive damages allegations and claim for relief. <u>Third Cause of Action – Breach of Contract</u> “If the action is based on an alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written instrument must be attached and incorporated by reference.” (Otworth v. Southern Pac. Transportation Co. (1985) 166 Cal.App.3d 452, 459.) Here, Plaintiff has not attached the written contract or sufficient set forth the terms verbatim in the body of the complaint. The Demurrer is SUSTAINED WITH 20 DAYS LEAVE TO AMEND as to the third cause of action for breach of contract. <u>Fifth Cause of Action – IIED, Seventh Cause of Action – Fraudulent Concealment, Eighth Cause of Action – Intentional Misrepresentation</u> The Demurrer is OVERRULED as to these causes of action. The Court finds that the Complaint sufficiently states a claim for intentional infliction of emotional distress because the complaint alleges that Defendant

	purposefully exposed Plaintiffs to uninhabitable conditions with reckless disregard for emotional distress of being exposed to and getting sick from the uninhabitable environment of the premises. The conditions alleged are sufficiently “outrageous” as they go beyond those that should be tolerated in a civilized society. Such conditions alleged include the presence of several types of mold and gas leaks along with Defendant’s refusal to undertake any remediation. (Berry v. Frazier (2023) 90 Cal.App.5th 1258, 1273, as modified on denial of reh'g (May 15, 2023); Crouch v. Trinity Christian Center of Santa Ana, Inc. (2019) 39 Cal.App.5th 995, 1007; Hughes v. Pair (2009) 46 Cal.4th 1035, 1050.) Likewise, the Court finds that Plaintiffs have sufficiently alleged a cause of action for fraudulent concealment. (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40; see also Lazar v. Superior Court (1996) 12 Cal 4th 631, 638.) Plaintiffs and Defendant are in a landlord-tenant relationship, which is a transactional relationship that gives rise to the duty to disclose. Plaintiffs allege that Defendant failed to disclose the elevated presence of mold, mildew, other microbial growth and other harmful environmental conditions. Plaintiffs also allege that “prior to Plaintiffs moving into the Property, Defendants knew, or had reasonable cause to believe, that mold, both visible and invisible or hidden, was present in the Property, and that the mold either exceeded the permissible exposure limits established by § 26103(a), (b), and (c), or that the mold posed a health threat according to the California State Department of Health Services’ guidelines.” Plaintiffs further allege that “[n]one of these defective conditions at the Property were known to Plaintiffs and Plaintiffs reasonably relied on the Defendants’ assurances that the Property defects had been properly addressed even though Defendants knew that they had not been properly addressed.” Plaintiffs allege they suffered physical as well as financial injuries as a result of these concealments. Finally, the Court also finds that Plaintiffs have sufficiently alleged their eighth cause of action for
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		intentional misrepresentation. (Charnay v. Cobert (2006) 145 Cal.App.4th 170, 184.) Again, Plaintiffs allege that Defendant made representations about the habitability of the premises and that Defendant either know or reasonably should have known that the premises were not habitable given the presence of toxic mold. Still, Defendant represented that the premises were safe in order to induce Plaintiffs to reside at and pay rent for the premises. Plaintiffs allege they were justified in believing Defendant's representations regarding the habitability and safety and that they suffered physical as well as financial injuries as a result of these misrepresentations. <u>Motion to Strike</u> The Court finds that Plaintiffs have sufficiently alleged that Defendant acted with a conscious disregard for the safety of Plaintiffs by failing to disclose the presence of toxic mold on the property and failing to remediate the toxic mold. Plaintiffs allege that Defendant had the requisite knowledge to eliminate the toxic mold and instead chose to subject Plaintiffs to its toxicity. These allegations are sufficient to state a claim for relief of punitive damages. (Penner v. Falk (1984) 153 Cal.App.3d 858, 867; Civ. Code, § 3294; Code Civ. Proc., §§ 435 and 436.) Defendant to give notice.
104	Chao v. Air Combat USA, 2022-01258475	DEMURRER TO AMENDED COMPLAINT – SUSTAINED IN PART WITH LEAVE TO AMEND AND OVERRULED IN PART Defendants, Air Combat USA, Inc. and Michael J. Blackstone, demur to the second and fourth causes of action in the First Amended Complaint of Plaintiff, Jack W. Chao. The demurer is OVERRULED, in part, SUSTAINED, in part. Initially, Plaintiff correctly contends that the notice of motion misidentifies the causes of action at issue as the second cause of action for conversion and fourth cause of action for unjust enrichment. Rather, Defendants demur to the second cause of action for unjust enrichment/restitution and fourth cause of action for fraud in the inducement, fraudulent concealment, and

		constructive fraud. Although the notice is defective and does not comply with Code of Civil Procedure section 430.60, since it is clear to the parties what causes of action are at issue and the parties have addressed the actual second and fourth causes of action alleged in the operative First Amended Complaint, the Court elects to proceed on the merits. <u>Second Cause of Action for Unjust Enrichment</u> Unjust enrichment is not a separate cause of action. “ ‘Unjust Enrichment’ does not describe a theory of recovery, but an effect: the result of a failure to make restitution under circumstances where it is equitable to do so. In any event, there is no particular form of pleading necessary to invoke the doctrine of restitution.” (Hernandez v. Lopez (2009) 180 Cal.App.4th 932, 938-939.) The demurrer to this cause of action will be sustained with 20 days leave to amend. Absent extraordinary circumstances, further leave to amend will not be granted. <u>Fourth Cause of Action for Fraud in the Inducement/Fraudulent Concealment/Constructive Fraud</u> Defendant demurs to the fourth cause of action on the grounds (1) it fails to state facts sufficient to state a cause of action, and (2) it is barred by the litigation privilege. The gravamen of Plaintiff’s fraud claims are the statements and communications made by Defendants (as Plaintiff’s prospective clients) relating to Plaintiff’s possible retention to represent ACUSA in the O’Reilly Matter. The Court finds that the fourth cause of action states a cause of action against Defendants. The Court further finds that the fourth cause of action is not barred by the litigation privilege. Civil Code section 47(b) provides, in part, that a privileged publication is one made “[i]n any (1) legislative proceeding, (2) judicial proceeding, (3) in any other official proceeding authorized by law, or (4) in the initiation or course of any other proceeding authorized
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		by law” This privilege applies to any communication and to all torts except malicious prosecution, and applies to any publication permitted by law in the course of a judicial proceeding to achieve the objects of the litigation, even if the publication is made outside the courtroom and no function or its officers is involved. (Silberg v. Anderson (1990) 50 Cal.3d 205, 212.) Thus, it applies to any communication “(1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action. [Citations.]” (Ibid.) “ ‘The principal purpose of [the litigation privilege] is to afford litigants and witnesses [citation] the utmost freedom of access to the courts without fear of being harassed subsequently by derivative tort actions. [Citations.]’ [Citation.] In order to achieve this purpose of curtailing derivative lawsuits, we have given the litigation privilege a broad interpretation.’ [Citation.]” (Olsen v. Harbison (2010) 191 Cal.App.4th 325, 333.) “The breadth of the litigation privilege cannot be understated. It immunizes defendants from virtually any tort liability (including claims for fraud), with the sole exception of causes of action for malicious prosecution. [Citation.]” (Ibid.) “The litigation privilege applies to statements made ‘by litigants or other participants authorized by law’ [citation], and it attaches to communications ‘made in, or in anticipation of, litigation.’ [Citation.]” (Id. at p. 334.) Here, the FAC alleges that the fraudulent inducement and material nondisclosure by Defendants occurred in the execution of the contingency fee agreement in October 2017. Plaintiff alleges that the October 20, 2017 contingent fee agreement was signed in reliance on ACUSA’s affirmative representations and omissions; that had Plaintiff known the omitted facts, Plaintiff would not have agreed to the same fee agreement and would have required materially different compensation and risk allocation terms, and that Plaintiff forewent other professional and legal opportunities in reliance on Defendants’ material misrepresentations and omissions. (FAC, ¶¶ 36-37.)
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		In contrast to Olsen v. Harbison (2010) 191 Cal.App.4th 325, in this case the defendants' statements were made for economic self-interest and were not made to achieve the objects of the litigation or to help obtain a verdict or settlement. (Id. at pp. 335-336.) The Court therefore OVERRULES the demurrer to the fourth cause of action. The Court GRANTS Defendants' request for judicial notice. Plaintiff to give notice.
105	Huntington Beach v. Surf City Partners, 2026-01565130	MOTION FOR COURT-ORDERED SERVICE – GRANTED Plaintiff City of Huntington Beach moves this Court for an order authorizing service of process on Defendant through the California Secretary of State pursuant to Corporations Code section 17701.16(c). The unopposed motion is GRANTED pursuant to Corporations Code §17701.16(c). Service shall be made upon Surf City Partners, LLC by delivering by hand to the Secretary of State, or to any person employed in the Secretary of State's office in the capacity of assistant or deputy, one copy of the process for each defendant to be served, together with a copy of the order authorizing the service. Service in this manner shall be deemed complete on the 10th day after delivery of the process to the Secretary of State. Clerk to give notice.
106	Fullerton v. Air Combat USA, 2026-01548989	MOTION FOR LEAVE TO INTERVENE – GRANTED “The court shall, upon timely application, permit a nonparty to intervene in the action or proceeding if either of the following conditions is satisfied: . . . (B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that

	person's interest is adequately represented by one or more of the existing parties." (CCP 387(d)(1)(B).) The right to intervention is unconditional "when the person seeking intervention claims an interest relating to the property or transaction that is the subject of the action, the disposition of the action may impair or impede the person's ability to protect that interest, and the interest is not being adequately represented by existing parties. [Citation.]" (Mylan Laboratories Inc. v. Soon-Shiong (1999) 76 Cal.App.4th 71, 77-78.) Here, the property at issue is the approximately \$2.2 million in this interpleader action. (Declaration of Gary S. Casselman ("Casselman Decl."), ¶ 9.) There is no argument that Casselman's application is not timely. The Complaint In Interpleader was filed on February 19, 2026, and Casselman was not identified as a claimant. (Casselman Decl., ¶ 10.) On April 17, 2026, Casselman filed a Notice of Related Case relating the instant case to the Los Angeles Action. (ROA 28.) On May 29, 2026, Casselman filed the original motion for leave to intervene. (ROA 74.) While there is no evidence indicating when Casselman knew or should have known his interests in the litigation were not being adequately represented, the original motion for leave to intervene was filed a little more than three (3) months after the instant Complaint In Interpleader was filed, and the timing appears reasonable. Casselman provides that he became lead trial counsel for Air Combat USA, Inc. ("ACUSA") and Michael J. Blackstone ("Blackstone") immediately before trial at Blackstone's urgent request in the underlying litigation against the City of Fullerton, beginning on or about February 26, 2020; that Casselman performed substantial trial, post-trial, appellate-support, remand, settlement and mediation services for Defendants; that the jury returned a \$1.2 million verdict for ACUSA on September 16, 2020; that the trial court subsequently awarded prevailing party attorney fees, including \$342,720 attributed to Casselman's work through trial at \$700 per hour, which was affirmed on appeal; that no final signed fee agreement was executed between
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	Casselman and ACUSA/Blackstone; and that after the trial and fee motion, Casselman continued to provide services at Blackstone's request or with his knowledge and consent that contributed to the eventual \$2.2 million settlement. (Casselman Decl., ¶¶ 2-6.) Casselman also provides that the OCBA Mandatory Fee Arbitration Committee, which ACUSA and Blackstone petitioned in May 2024, issued an advisory award dated February 10, 2026, awarding Casselman \$429,403.60 in fees and costs against ACUSA and Blackstone, jointly and severally, including \$113,050 for 161.5 hours of post-trial services and \$2,133.60 in unreimbursed costs. (Casselman Decl., ¶ 7.) The foregoing evidence appears sufficient to support the existence of a significantly protectable interest in the interpleaded funds. Defendants assert that Casselman does not have a direct and immediate interest in the interpleaded funds because he does not have a lien or liquidated claim and only has a contingent claim, but cites to no authority which provides that an attorney must have a lien or liquidated claim in order to be able to intervene in an interpleader action determining the right to certain funds. The Court finds that <i>Brown v. Superior Court</i> (2004) 116 Cal.App.4th 320 and <i>Carroll v. Interstate Brands Corp.</i> (2002) 99 Cal.App.4th 1168, cited by Defendants, are inapplicable here as those cases involved an attorney seeking adjudication of an attorney lien in the same action in which the attorney represented the client. Based on the foregoing, Casselman has satisfied the requirements of Code of Civil Procedure section 387(d)(1)(B), and has set forth the grounds upon which the intervention rests. Casselman has also concurrently filed a copy of the proposed complaint in intervention with the amended notice of motion and motion. (ROA 122.) The Court GRANTS Casselman's motion for leave to intervene and orders Casselman to separately file the Complaint-In-Intervention within 10 days, and serve the same in accordance with Code of Civil Procedure section 387.
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		Casselman may file a Notice of Related Case after the filing of the Complaint-In-Intervention. Casselman to give notice.
107	Cloutier v. Khedraki, 2025-01503041	MOTION TO APPROVE SETTLEMENT – GRANTED Defendants Ousama Khedraki (erroneously sued as Sam Khedraki and Dima Khedraki (together, “Defendants”) move for an order approving the settlement reached between the parties. An enforceable settlement of an action involving a person lacking the capacity to make decisions can only be consummated with court approval. (Code Civ. Proc., § 372(a)(3) [guardian ad litem appearing for person who lacks legal capacity to make decisions may, with approval of the court, compromise the same].) A petition for court approval of a compromise under Code of Civil Procedure section 372 must comply with rules 7.950, 7.950.5, 7.951, and 7.952. A petition for court approval of a compromise or settlement of a pending action to which a person with a disability is a party must be verified by the petitioner and, except as provided in rule 7.950.5 (which is not applicable here), submitted on form MC-350. (Cal. Rules of Court, rule 7.950.) Because Defendants’ Motion was not initially verified or on the required form, the hearing on Defendants’ Motion was continued from 8/24/26 to 9/28/26. On 8/25/26, Defendants served form MC-350 and submitted it for filing but the filing was rejected and Defendants were directed by the Clerk to file the form in the Probate Department. Code of Civil Procedure section 372(a)(3) provides in relevant part: “The guardian or conservator of the estate or guardian ad litem so appearing for any minor, person who lacks legal capacity to make decisions, or person for whom a conservator has been appointed shall have power, with the approval of the court in which the action or proceeding is pending, to compromise the same, to

		agree to the order or judgment to be entered therein for or against the ward or conservatee, and to satisfy any judgment or order in favor of the ward or conservatee or release or discharge any claim of the ward or conservatee pursuant to that compromise.” Based on this statute, the Court finds that it has the authority to approve the compromise between the parties here and that the Clerk’s rejection of Defendants’ filing was erroneous. Form MC-350 is attached as Exhibit B to the Declaration of Jeremy J. Alberts filed 9/11/26. It is properly verified and was served on Plaintiff by email. The previous deficiencies with the Motion having been remedied, the Motion to Approve Settlement is GRANTED. Moving party to give notice.
108	Curiel v. Nasim, 2024-01412811	MOTION FOR SUMMARY JUDGMENT/ADJUDICATION – DENIED On December 8, 2023 at approximately 4:35 p.m., Defendant Mirwais Nasim was driving southbound on SR-55 in Costa Mesa, California when he rear ended the vehicle occupied by Plaintiffs Mariela Curiel and Christopher Ortiz after it had stopped for traffic ahead of him. (Plaintiffs’ Additional Material Facts (PAMF) # 13) Nasim was approved to use the Lyft app as an app-based independent contractor driver. (Lyft’s Separate Statement of Undisputed Material Facts (SSUMF) # 7) Nasim was using the Lyft Platform as an app-based independent contractor driver pursuant to Lyft’s terms of service when the accident occurred. (SSUMF #17) Plaintiffs sued Nasim and Lyft for a single cause of action of motor vehicle negligence. Lyft filed a motion for summary judgment on the ground it is neither directly liable nor vicariously liable for Nasim’s negligence. Because the Court finds that Lyft has not established it cannot be vicariously liable for Plaintiffs’ damages in this case, it need not address the issue of direct liability. A defendant seeking summary judgment bears the burden of persuasion and proof by a preponderance of the evidence to negate the plaintiff’s claim. It may do this by demonstrating the claim has no merit, the

		plaintiff cannot prove an element of the claim, or that defendant has a complete defense entitling it to judgment as a matter of law. (Code Civ. Proc., § 437c (p)(2); Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 849-850). A defendant must show that a cause of action has no merit or that one or more elements of the cause of action cannot be established. (Code Civ. Proc. § 437c, subd. (p)(2); Aguilar, supra, 25 Cal.4th at pp. 850-51.) If the moving party meets its burden, the burden then shifts to the party opposing summary judgment to show, by reference to specific facts, the existence of a triable, material issue as to a cause of action or an affirmative defense. (Aguilar, supra, 25 Cal.4th at p. 855; Villacres v. ABM Industries, Inc. (2010) 189 Cal.App.4th 562, 575.) Defendant Lyft admits that it is a transportation network company subject to certain statutes in the Public Utilities Code but argues that it cannot be held vicariously liable for the alleged negligence of Defendant Nasim because Nasim was an app based independent contractor at the time of the accident, not an employee or agent of Lyft, and in accordance with Business & Professions Code section 7451, Lyft is not vicariously liable for the actions of independent contractors as a matter of law. Business and Professions Code section 7451 provides: “Notwithstanding any other provision of law, including, but not limited to, the Labor Code, the Unemployment Insurance Code, and any orders, regulations, or opinions of the Department of Industrial Relations or any board, division, or commission within the Department of Industrial Relations, an app-based driver is an independent contractor and not an employee or agent with respect to the app-based driver’s relationship with a network company if the following conditions are met: (a) The network company does not unilaterally prescribe specific dates, times of day, or a minimum number of hours during which the app-based driver must be logged into the network company’s online-enabled application or platform. (b) The network company does not require the app-based driver to accept any specific rideshare service or delivery service request as a condition of maintaining access to the network company’s online-
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	enabled application or platform. (c) The network company does not restrict the app-based driver from performing rideshare services or delivery services through other network companies except during engaged time. (d) The network company does not restrict the app-based driver from working in any other lawful occupation or business.” Section 7451 was enacted as part of Proposition 22, otherwise known as the Protect App-Based Drivers and Services Act, in the November 2020 general election. (Division of Occupational Safety & Health v. Uber Technologies, Inc. (2026) 121 Cal.App.5th 213, 222.) “The purpose of the legislation was ‘[t]o protect the basic legal right of Californians to choose to work as independent contractors with rideshare and delivery network companies throughout the state’ [citation], ‘[t]o require rideshare and delivery network companies to offer new protections and benefits for app-based rideshare and delivery drivers’ [citation], and ‘[t]o improve public safety by requiring criminal background checks, driver safety training, and other safety provisions to help ensure app-based rideshare and delivery drivers do not pose a threat to customers or the public’ [citation].” (Id., at pp. 222–223.) “Under section 7451, a driver for an app-based transportation or delivery company, such as Uber Technologies, Inc. (Uber), Lyft, Inc. (Lyft), or DoorDash, Inc., is an independent contractor and not an employee of the company as long as several conditions are met.” (Castellanos v. State of California (2024) 16 Cal.5th 588, 595; see Division of Occupational Safety & Health v. Uber Technologies, Inc., supra, at p. 223.) “Section 7451 operates to classify app-based drivers as independent contractors instead of employees when certain criteria are met.” (Castellanos, at p. 607.) In this case, the Court need not consider whether Lyft has established the lack of a triable issue of material fact as to Nasim’s status as an independent contractor. Whether or not Nasim was an employee, independent contractor, or agent of Lyft, Lyft cannot show the lack of a triable issue of material fact as to its potential vicarious liability. The plain language of Business and Professions Code section 7451, its statutory intent, and its legislative history all make clear that the statute governs “the app-
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		based driver’s relationship with a network company.” The statute was intended to address labor concerns regarding app-based drivers. This is reflected in the opening sentence of the statute, which states “Notwithstanding any other provision of law, including, but not limited to, the Labor Code, the Unemployment Insurance Code, and any orders, regulations, or opinions of the Department of Industrial Relations or any board, division, or commission within the Department of Industrial Relations.” (Bus. & Prof. Code, § 7451.) Section 7451 does not address the relationship between the network company and third parties who are injured by the network company drivers. Rather, Public Utilities Code section 5354 addresses the privileges and obligations of the network company and third parties. The statute provides: “In construing and enforcing the provisions of this chapter relating to the prescribed privileges and obligations of the holder of a permit or certificate issued hereunder, the act, omission, or failure of any officer, agent, or employee, or person offering to afford the authorized service with the approval or consent of the permit or certificate holder, is the act, omission, or failure of the permit or certificate holder.” (Pub. Util. Code, § 5354, emphasis added.) Under Public Utilities Code section 5354, Defendant Lyft is liable for any “act, omission, or failure of any officer, agent, or employee, or person offering to afford the authorized service with the approval or consent of the permit or certificate holder.” Defendant Nasim falls squarely within this definition. Defendant Lyft argues that the phrase “notwithstanding any other provision of law” in Business & Professions Code section 7451 operates to bar all vicarious liability. The “statutory phrase notwithstanding any other provision of law is a term of art that declares the legislative intent to override all contrary law.” (People v. Taylor (2021) 60 Cal.App.5th 115, 134; see also Faulder v. Mendocino County Bd. of Supervisors (2006) 144 Cal.App.4th 1362, 1373.) “Accordingly, the prefatory phrase ‘notwithstanding any other provision of law’ has a broad sweep.” (Ibid.) “But it renders inapplicable ‘only those provisions of law that conflict with the act’s provisions’ [citation] and not ‘every provision of law.’” (Ibid. [bold emphasis added].)
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		The Court is not persuaded that Business and Professions Code section 7451 conflicts with the provisions in Public Utilities Code section 5354 because section 7451 addresses the relationship between the network company and its app-based drivers whereas section 5354 address the relationship between the network company and those impacted by any act, omission, or failure of any network company officer, agent, or employee, or person offering to afford the authorized service with the approval or consent of the permit or certificate holder. In moving for summary judgment, Defendant Lyft has not presented undisputed evidence that establishes that Defendant Nasim is not a “person offering to afford the authorized service with the approval or consent of the permit or certificate holder.” There are triable issues of material fact as to whether Defendant Lyft can be held vicariously liable for Defendant Nasim’s acts, omissions, or failures as they related to the incident at issue. The Motion for Summary Judgment is DENIED. Moving party to give notice.
109	Elias v. Jensen, 2020-01139897	MOTION FOR STATEMENT OF DECISION – CONTINUED DUE TO STAY
110	Kienzle v. Universal Protection Service, 2026-01563623	MOTION TO COMPEL ARBITRATION – GRANTED Terry Kienzle sued his former employer, Defendant Universal Protection Service, dba Allied Universal Security Services for wrongful termination, wage and hour claims, and retaliation claims. Defendant filed a motion to compel arbitration. Defendant established the existence of an arbitration agreement between the parties. (Grzywacz Decl., ex. A.) The electronic signature on the arbitration agreement does not invalidate it, and the Grzywacz declaration properly authenticates the document. Plaintiff has not offered evidence to refute Defendant’s prima facie showing as to the authenticity of the arbitration

		agreement. (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165.) The arbitration agreement applies to “all claims or cause of action that the Employee may have against the Company.” (Grzywacz Decl., Ex. A, p. 1.) Plaintiff does not argue that the claims in his complaint are not covered by this provision. Plaintiff has not established the arbitration agreement is unconscionable. No admissible evidence was offered that the agreement is a contract of adhesion. To the contrary, the agreement states twice that signing it was not a condition of employment. Plaintiff has also failed to show the agreement is substantively unconscionable. No authority is cited that an arbitration agreement is unconscionable because it covers claims against third parties. While the costs of arbitration may be unconscionable if they have an impact on an employee’s ability to vindicate statutory rights, under Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 118, this is sufficiently ameliorated by the employer’s agreement to pay all of the costs unique to arbitration. This includes the arbitration filing fee. Therefore, although the arbitration agreement says that some of the filing fee is to be paid by Plaintiff, as a condition of this order, Defendant shall pay the entirety of the initial arbitration fee.
111	Le v. CUIAB, 2026-01538470	CONTINUED, OSC RE DISMISSAL SET BY COURT
112	McGrew v. Heimbuch, 2025-01535253	MOTION TO SET ASIDE/VACATE DEFAULT – GRANTED MOTION FOR LEAVE TO FILE DEMURRER – GRANTED Defendant Jeff Heimbuch (“Defendant”) moves for an order setting aside default and granting him leave to file a demurrer to plaintiff Shannon McGrew’s (“Plaintiff”)

	Complaint. Defendant also requests a stay of discovery pending final resolution of the demurrer. The court is empowered to relieve a party “upon any terms as may be just . . . from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473(b).) Application for an order for relief “shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Ibid.) The law strongly favors an exercise of discretion in favor of granting relief so that matters can be heard on their merits. (Shapiro v. Clark (2008) 164 Cal.App.4th 1128, 1139.) “ ‘Because the law favors disposing of cases on their merits, “any doubts in applying section 473 must be resolved in favor of the party seeking relief from default [citations].” ’ ” (Ibid.) For instance, in Shapiro, the appellate court held that because the defendant’s delay in attempting to plead was minimal and she had not wholly neglected her responsibility to plead, “the record show[ed] an adequate justification” for the failure to timely respond and “[i]n such a case scarcely any excuse is needed to justify the lifting of a default.” (Id. at pp. 1140-1141.) Defendant was served by personal service on 1/15/26. In lieu of filing an answer or demurrer, Defendant filed a special motion to strike, which was denied on 4/20/26. On 5/5/26, Plaintiff emailed Defendant and advised that if an answer was not filed and served by 5/11/26, Plaintiff would proceed with the entry of default. On 5/11/26, Defendant filed a motion for leave to file a late demurrer and Plaintiff had default entered on 5/12/26. Defendant argues his failure to timely file a demurrer was due to his pursuit of his anti-SLAPP motion, which was done in good faith. He contends that after the anti-SLAPP motion was denied, he diligently researched procedural law and identified two potentially dispositive defenses and in good faith believed a motion for leave to file a late demurrer was the proper vehicle. He further argues that Plaintiff will suffer no prejudice if a late
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		demurrer is permitted, as this case is still in the early stages. Defendant's Motion to Vacate Default was timely filed within six months of the entry of default. The Court finds that Defendant's failure to timely file a demurrer has not caused any prejudice to Plaintiff. Defendant was given until 5/11/26 by Plaintiff and Defendant did not wholly neglect his responsibility to do so. Instead, he attempted to act timely by filing the motion for leave to file a late demurrer within the deadline imposed by Plaintiff. Further, the Court finds Defendant's failure to timely file a demurrer because he instead pursued a special motion to strike appears reasonable and excusable. Thus, in light of the policy of resolving any doubts in favor of the party seeking relief, Defendant's Motion to Vacate Default and Motion for Leave to File Demurrer are GRANTED. Defendant's request to stay all discovery pending resolution of the demurrer is DENIED. While discovery was stayed pending resolution of the anti-SLAPP motion pursuant to statute, there is no basis for Defendant's request for a stay with regard to the demurrer. Defendant is ORDERED to file and serve his demurrer within 10 days upon notice of this order. Moving party to give notice.
113	National Funding v. Firstclassrides, 2025-01499184	MOTION FOR SUMMARY JUDGMENT – GRANTED Plaintiff NATIONAL FUNDING, INC. ("Plaintiff") moves for an order granting summary judgment against Defendants FIRSTCLASSRIDES LLC dba FIRST CLASS RIDES and ANTONIO GRAVES (collectively, "Defendants") as to the claims alleged against them by Plaintiff. 7/23/2025 Plaintiff filed a Complaint against Defendants for Breach of Contract. The requisite elements for a prima facie showing of breach of contract are (1) existence of a contract, (2) the plaintiff's performance or excuse for non-performance, (3) defendant's breach, and (4) damage to plaintiff therefrom. (See Wall Street Network, Ltd. v. New York

	Times Co. (2008) 164 Cal.App.4th 1171, 1178.) A valid contract based on consideration is presumed when the contract is reduced to writing. (See Civ. Code, § 1614.) Plaintiff argues that on or about January 1, 2025, Defendants executed and delivered to Plaintiff a Settlement Agreement (the “Settlement Agreement”), whereby Defendants agreed to pay \$120,120 to Plaintiff in exchange for a release of claims against them regarding the failure to repay sums due under two loan agreements. (Separate Statement of Undisputed Material Facts (“SSUMF”), ¶ 1.) The Settlement Agreement provided for a total payment obligation of \$120,120 to be paid by Defendants to Plaintiff via consecutive weekly installment payments of \$1,155 starting December 27, 2024 and continuing every week until the settlement amount was repaid in full. (SSUMF, ¶ 2.) Defendants defaulted on the Settlement Agreement several times by failing to make payments when due. This included but was not limited to weekly payments due on January 3, 2025, January 10, 2025, January 17, 2025, January 24, 2025, February 21, 2025, February 28, 2025, March 7, 2025, March 14, 2025, April 18, 2025, April 25, 2025, May 9, 2025, May 16, 2025, May 23, 2025, May 30, 2025, June 13, 2025, and June 20, 2025. (SSUMF, ¶ 3.) After Defendants failed to make a \$1,200 payment via credit card in an attempt to get partially caught up on several missed weekly payments, Plaintiff elected to declare a breach of the Settlement Agreement on or about July 23, 2025. (SSUMF, ¶ 4.) Upon Defendants’ breach of Settlement Agreement, the entire outstanding balance of \$112,177.50 was made due and payable. (SSUMF, ¶ 5.) Plaintiff has demanded payment from Defendants for the amount due under the Settlement Agreement. (SSUMF, ¶ 6.) Despite Plaintiff’s demand, Defendants
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		have both failed to pay the amounts due under the Settlement Agreement. (SSUMF, ¶ 7.) Plaintiff argues Defendants breached the terms of the Settlement Agreement by failing to timely make several of their weekly payments of \$1,155, and by failing to make a \$1,200 catch up payment despite representing that such payment would be made. (SSUMF, ¶¶ 3-5.) As a result of Defendants’ breach of the Settlement Agreement, \$112,177.50 remains due and payable. (SSUMF, ¶ 5.) Here, Plaintiff has set forth the terms of the Settlement and attached the Settlement Agreement as Ex. 1 to the Declaration of Sandra Otero. The Otero Declaration establishes Defendants have breached the agreement. (See Decl. of Otero ¶¶ 5-7, Ex. 1 and 2.) There remains an outstanding settlement balance in the amount of \$112,177.50. Plaintiff sustained its initial substantive burden to establish each element of the cause of action (CCP §437c(p)(1)), thus shifting the burden to Defendants to establish the existence of a triable issue of material fact. Defendants having failed to file any opposition failed to sustain their burden and the motion is thus GRANTED. Plaintiff to give notice and prepare a proposed order and a proposed judgment.
114	Sanchez v. Hopper, 2025-01485565	MOTION TO BE RELIEVED AS COUNSEL – DENIED WITHOUT PREJUDICE DK Law (“Moving Counsel”), moves to be relieved as Counsel of Record for Plaintiff, Fabian Yopihua Sanchez. The Motion to be Relieved as Counsel of Record is DENIED, without prejudice. The instant motion to be relieved as counsel of record originally came on for hearing on August 10, 2026. The Court ordered counsel to file a proof of service and a proposed order for the Court’s signature.

		As of September 23, 2026, Moving Counsel has not filed the proof of service and proposed order. The Court orders clerk to give notice.
115	Solouki v. Saint-Gobain Performance Plastics, 2025-01507443	MOTION TO BE RELIEVED AS COUNSEL – GRANTED Gloria Tumanyan (“Moving Attorney”) moves to be relieved as counsel of record for plaintiff Tony Solouki. The motion is unopposed and Moving Attorney has stated a basis for permissive withdrawal under the Rules of Professional Conduct, Rule 1.16. All other requirements have been satisfied. Thus, the motion is GRANTED. The order relieving counsel will be effective upon counsel filing proof of service of a copy of the signed order on the client and on all parties that have appeared in the case. (California Rules of Court, Rule 3.1362(e).) Moving Attorney to give notice.
116	Unlimited Transport v. Anderson, 2025-01483349	CASE MANAGEMENT CONFERENCE – CONTINUED TO 1:30 p.m.
117	Zamora v. King, 2025-01469527	DEMURRER TO AMENDED COMPLAINT – SUSTAINED WITH 20 DAYS LEAVE TO AMEND Defendant, COURY & BUEHLER PHYSICAL THERAPY, INC. (CBPT) seeks an order sustaining its demurrer to the 2nd cause of action of the first amended complaint (FAC), for negligent misrepresentation. Demurrer is sustained with 20 days leave to amend. Absent extraordinary circumstances, no further leave to amend will be granted. The elements of negligent misrepresentation are (1) a misrepresentation of a past or existing material fact, (2) made without reasonable ground for believing it to be true, (3) made with the intent to induce another's reliance on the fact misrepresented, (4) justifiable

	reliance on the misrepresentation, and (5) resulting damage. (Wells Fargo Bank, N.A. v. FSI, Financial Solutions, Inc. (2011) 196 Cal.App.4th 1559, 1573.) To plead a claim for fraud by affirmative misrepresentation, the plaintiff must “state facts which show how, when, where, to whom, and by what means the representations were tendered.” (Beckwith v. Dahl (2012) 205 Cal.App.4th 1039, 1060.) Plaintiff argues the following facts are sufficient to constitute a cause of action for negligent misrepresentation. On October 25, 2022, Dr. Steve Kang of Defendant OSI surgically repaired Plaintiff's ruptured left Achilles tendon. (FAC ¶¶ 2-3, 13.) On January 4, 2023, Dr. Kang determined Plaintiff was ready for physical therapy and "could gradually transition out of the boot," and referred him to CBPT. (FAC ¶ 17.) On January 9, 2023, CBPT's Michael Vu, PTLA, evaluated Plaintiff and set his plan of care, and Plaintiff thereafter received physical therapy at CBPT. (FAC ¶¶ 18, 27, 34, 37.) In or around May 2023, Dr. Kang encountered Plaintiff in the waiting area of CBPT's physical therapy office with his leg still immobilized in the walking boot. Dr. Kang "was surprised," told Plaintiff that "he had been immobilized far too long," and, for the first time, instructed him to remove the boot "to prevent persistent and possibly irreversible atrophy." (FAC ¶ 21.) Plaintiff then "raised the issue with CBPT and they assured him that there was no problem or risk of atrophy and his recovery would continue over the next 12-18 months." (FAC ¶ 22.) Despite the recommended recovery period and consistent physical therapy, Plaintiff experienced little to no improvement; he cannot run, jump, or walk with a normal gait, and "[j]ust as Dr. Kang predicted, the atrophy appears to be permanent." (FAC ¶ 23.) Plaintiff was never advised by CBPT of the risks of prolonged immobilization. (FAC ¶¶ 24, 29.) Plaintiff argues that the “Who” is identified in the FAC as CBPT, acting through its treating physical therapist, Michael Vu, PTLA, who evaluated Plaintiff on January
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	9, 2023, set his plan of care, and treated him thereafter. (FAC ¶¶ 18, 37.) However as argued in Defendant’s reply, Michael Vu is mentioned by name only one time in paragraph 18 wherein it states that on January 9, 2023, BEFORE any alleged misrepresentations were made, Mr. Vu was the physical therapist who initially treated the plaintiff. Nowhere does plaintiff allege that Michael Vu, PTLA, made any misrepresentations at the January 9, 2023 appointment. Moreover, Plaintiff fails to indicate when he “raised the issue with CBPT”, nor does he indicate who “they” are at CBPT who “assured him that there was no problem or risk of atrophy.” Perhaps more importantly, it is unclear what the misrepresentation was in terms of the boot. Is Plaintiff suggesting CBPT misrepresented that there was no problem or risk of atrophy for the past use of the boot? Or, is he suggesting that CBPT assured him that there was no problem or risk of atrophy in remaining in the boot moving forward. It is totally unclear. (See FAC ¶¶ 8, 21, 22) Defendant to give notice.
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